

## **DETERMINATION TO SOLICIT FROM A SINGLE SOURCE**

Pursuant to Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i), for purchases not exceeding the Simplified Acquisition Threshold (SAT) Contracting Officers may solicit from only one source if the circumstances of the contract action deem only one source is reasonably available (e.g., urgency, exclusive licensing agreements, brand name, or industrial mobilization).

Pursuant to FAR 13.106-1(b)(1)(ii), when a single source is identified to provide a portion of the purchase as a Brand-Name, the documentation in paragraph 3 must state that this determination is only for a portion of the requirement.

**1. Agency and Contracting Activity.**

Bureau of Reclamation  
Interior Region 10 – California Great Basin  
Acquisition Services  
2800 Cottage Way, Room E-1815  
Sacramento, CA 95825

**2. Name and Address of Single Source.**

Nayak Corporation, Inc  
3705 Quakerbridge Road, Suite 201  
Hamilton, New Jersey 08619-1288

**3. Description of Supplies/Services and Estimated Cost.**

This is a sole source procurement action to Manitoba Hydro International's (MHI) authorized United States agent Nayak Corporation for PSCAD Simulation Software for the Bureau of Reclamation's Central Valley Operations Office (CVOO). The PSCAD software package will support CVOO protection engineers in performing power system studies used to develop or verify protection system settings. The software package includes PSCAD v5.1, PRSIM (Power System Importer) with PSS/E and Enterplot Licenses and 16 Parallel Simulations. This request will result in the issuance of a new Firm-Fixed Price Purchase Order at an estimated cost of [REDACTED]

**4. Description of Circumstances, including why only one source is reasonably available.**

Manitoba Hydro International is the sole developer and owner of PSCAD Simulation software. Due to the proprietary nature of the software, vendors other than authorized resellers would not be able to provide the software or the support. Additionally, only authorized agents may sell and provide support services for Manitoba's products. Nayak Corporation is the only authorized agent in the United States authorized to sell and support the software required by the Bureau of Reclamation.

**5. Determination of Fair and Reasonable Price.**

The software is proprietary to MHI and there is only one vendor in the United States that is authorized to provide the software and support that Reclamation requires. The Contracting Officer will compare the quote for the software package provided by Manitoba Hydro International with the official quote that will be provided by Nayak Corporation. The cost of the software is approximately [REDACTED], and since the software cannot be purchased from any other vendor, the CO has determined the price fair and reasonable.

**6. Description of Market Research.**

The Contracting Officer sent an email to Bea Osapai from Nayak Corporation on 4/15/2026 to confirm that Nayak Corporation is the only provider of the required software within the United States. Bea Osapai confirmed via email on 4/16/2026 that MHI is the developer and owner of PSCAD Simulation software and Nayak is the sole authorized reseller of the software in the United States. A copy of the Distributer Certificate is provided in the file.

The Contracting Officer also did search via GSA eLibrary, GSA Advantage, SBA Dynamic Small Business Search, and NASA SEWP, all which yielded no results for PSCAD Simulation Software.

Based on this information, Nayak Corporation is the only available vendor that can fulfill this procurement.

**SIGNATURES**

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**PREPARED BY/ CONTRACTING OFFICER (CO) (FAR 13.106-1(b)):(All Values):**

|   |                  |
|---|------------------|
| X | Name: [REDACTED] |
|   | Date:            |